



Silk Contract Logistics – Toll Transport bulk logistics (glass and plastic) assets

MN-01116

Phase 1 Determination

Acquisition may be put into effect

25 August 2026

1. Determination and statement of reasons

Notified acquisition	Silk Contract Logistics Pty Ltd (Silk) proposes to acquire certain limited assets from Toll that comprise Toll Transport Pty Ltd's (Toll) separate bulk logistics (plastics and glass) business (the Acquisition). The assets the subject of the Acquisition comprise owned or leased equipment (trailers, prime movers and other equipment such as a reach stacker and pallet inverter), employee contracts, and two customer contracts.
Determination	The Australian Competition and Consumer Commission has determined under section 51ABZE(1) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition may be put into effect.
Parties to the Acquisition	The acquirer, Silk, is a wholly owned indirect subsidiary of DP World Australia (Holding) Ltd (DPW). Silk provides port logistics and contract logistics services. DPW, through its subsidiary DP World Australia Ltd, operates international container terminals and provides container stevedoring services at the Ports of Melbourne, Botany, Brisbane and Fremantle. Toll is a wholly owned subsidiary of Toll Holdings Pty Limited. Toll operates a bulk logistics business offering specialised services for the transportation of bulk products. The target business, Toll's plastics and glass bulk logistics business, provides warehousing, and containerised and loose bulk transportation services to customers in the plastics and glass industries, predominately in Victoria (through the Ports of Melbourne, Botany, Brisbane, and Kembla).
Overlap between the Parties	Both Silk and Toll's plastics and glass bulk logistics business operate in the supply of bulk containerised logistics services to customers in Australia, including to customers requiring logistics services for plastics (polymers) in Australia.
Reasons for determination	When making a determination in Phase 1, the Australian Competition and Consumer Commission (ACCC) undertakes a competition assessment and considers whether it is appropriate for an acquisition to be approved or subject to further assessment in Phase 2 in accordance with section 51ABZJ of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). In doing so, the ACCC must have regard to the object of the Act and all relevant matters, including the interests of consumers. For more information about the ACCC's approach to considering notified acquisitions, see the ACCC's merger assessment guidelines and interim merger process guidelines. In conducting its competition assessment, the ACCC has considered the information and documents that were submitted with the notification form, information from third parties and other information available to it. The ACCC has determined that the Acquisition may be put into effect as it considers that the Acquisition is unlikely to have the effect of substantially lessening competition in any market. In reaching its decision, and based on the material before it, the ACCC makes the following findings.

	• The market share aggregation in the supply of bulk containerised logistics to customers requiring services for plastics customers in Australia, as a result of the Acquisition, is estimated to be low. • The merged entity would continue to face competition from alternative suppliers of bulk containerised logistics, including to customers requiring logistics services for plastics in Australia.
Applications for review	A notifying party, or other person who has been allowed to do so by the Australian Competition Tribunal, may apply for review if they are dissatisfied with the determination. Pursuant to section 100C of the Act, applications for review of the determination are to be made to the Australian Competition Tribunal before the end of 14 calendar days after this statement of reasons was included on the ACCC's Acquisitions Register. To confirm whether there has been any application for review, please contact the Australian Competition Tribunal.

**Determination made by Commissioner Williams pursuant to a delegation under section 25(1)
of the Act**